

25LBCV03128 25LBCV03128

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-10

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Case Number: 25LBCV03128 Hearing Date: September 10, 2026 Dept: S27

1.

Background Facts

Plaintiff, American Express

National Bank filed this action against Defendant, Peter Guirguis on 11/17/25 for breach of credit card agreement.

Plaintiff filed proof of personal service on 1/07/26, which POS indicates Plaintiff's registered process server served Defendant with the summons and complaint on 12/19/25. On 1/26/26, at Plaintiff's request, the Clerk entered Defendant's default. On 1/29/26, at Plaintiff's request, the Court entered Judgment.

2.

Motion for Relief from Default and Default Judgment

Defendant moves for relief from default pursuant to CCP §473(b).

Defendant supports his motion with his own declaration and his attorney's declaration. Defense Counsel declares Defendant tendered the complaint to his office, and his assistant prepared an answer, which was approved and returned for filing, but due to his office's fault and mistake, the answer was never actually filed.

Whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit of fault attesting to his/her mistake, inadvertence, surprise or neglect, the court "shall" vacate the

resulting default, default judgment or dismissal. CCP §473(b). The only limitation is that the court may deny relief if it finds that the default, default judgment or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise or neglect, but that the attorney is attempting to "cover up" for his/her client. *Rogalski v. Nabers Cadillac* (1992) 11 Cal.App.4th 816. If the attorney is willing to take the blame, the court must set aside the entry of default, default judgment or dismissal.

Any opposition to the motion was due on or before 8/27/26. Plaintiff has not filed timely opposition, and the Court will not consider late-filed opposition papers. In light of the mandatory nature of relief and the lack of opposition, the motion is granted.

The Court notes that §473(b) requires the moving papers to be accompanied by a copy of the defendant's proposed responsive pleading. Defendant did not lodge a proposed answer with his moving papers, but did file an answer on 2/02/26. The requirement that Defendant file an answer is therefore satisfied.

3. Bankruptcy

On 8/03/26, Defendant filed a Notice of Stay of Proceedings in light of his filing of a bankruptcy petition in the Central District of California.

The Court sets an OSC re: status of bankruptcy for February 24, 2027, 8:30 a.m.

Defendant is ordered to give notice.